

Court No. - 3

Case :- WRIT - C No. - 11977 of 2022

Petitioner :- Rakesh Kumar Yadav

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Rakesh Kuamr Yadav

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents, and Shri N.K. Tiwari, learned counsel for the respondent no.2.

2. This writ petition has been filed praying for the following reliefs :

"a) Issue a writ order or direction in the nature of certiorari for quashing the impugned recovery notice dated 23.10.2021 sent by respondent no.2 to respondent no.3 through proper challen, for the realization of Rs.78141/- from the petitioner as theft dues of electricity.

b) Issue a writ, order or direction in the nature of Mandamus directing the respondent No.3 to not to realize amount mentioned in the recovery notice dated 23.10.2021 sent by respondent no.2 through proper challen and not to adopt any coercive means in pursuance to impugned recovery notice dated 23.10.2021 till the disposal of objection dated 25.9.2021 of the petitioner pending before respondent no.2."

3. Learned counsel for the respondent no.2/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.2 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be

decided by the respondent no.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 4.7.2022

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